TOWNSHIP OF DOWNE
CUMBERLAND COUNTY, NEW JERSEY

	YES	NO	ABSTAIN	ABSENT
Jordan, L.	X			
Byrne, S.	X			
Rothman, M.	X			
Bart, E.	X			
Campbell, R.	X			

Resolution Number: R-99-2026
Dated: July 13, 2026
Offered By: ROTHMAN
Seconded By: CAMPBELL

RESOLUTION TO ESTABLISH A BALLOT MEASURE TO CONSIDER A BAN ON DATA CENTERS

WHEREAS, the citizens of Downe Township have gathered and submitted a petition containing 240 signatures of voters registered in the Township seeking to establish a ballot initiative to adopt an Ordinance Banning Data Centers; and

WHEREAS, the NJ Statutes Optional Municipal Charter Law N.J.S.A. 40:69A-1 et seq. Section 17-35 empowers voters to propose Municipal Ordinances and pass or reject them directly at the polls and the process permits such initiative to be placed on the ballot of the next general election, a binding referendum to adopt a Municipal Ordinance should have 15% of the number of voters in the last election sign the petition; and

WHEREAS, the number of signatories to the petition as certified by the Cumberland County Clerk's Office exceeds the 15% threshold for consideration and therefore requires placement of an Ordinance on the ballot for a vote at the next general election; and

WHEREAS, the Township of Downe has proposed language for a municipal Ordinance which terms are intended to reflect the sentiment of the petition, and which terms are spelled out in a concurrent submission for first reading captioned: *"AN ORDINANCE AMENDING AND SUPPLEMENTING THE CODE OF THE TOWNSHIP OF DOWNE TO INCLUDE AND DESIGNATE DATA CENTERS AS A NON-PERMITTED USE IN ALL ZONES WITHIN THE TOWNSHIP OF DOWNE".*

NOW, THEREFORE, BE IT RESOLVED by the Township Committee that a ballot question be placed upon the ballot at the next scheduled general election to put the question of banning data centers before the public.

THIS RESOLUTION was adopted by the Township Committee of the Township of Downe on July 13, 2026.

ATTEST:

Nadine E. Lockley, Municipal Clerk

Michael L. Rothman, Mayor

C E R T I F I C A T I O N

I, **NADINE E. LOCKLEY, RMC, CMR,** Municipal Clerk of the Township of Downe, County of Cumberland, State of New Jersey do hereby certify the foregoing to be a true and accurate copy of the Resolution adopted by the Downe Township Committee of the Township of Downe, County of Cumberland, State of New Jersey, at their Regular Meeting held on July 13, 2026 at 6:30 pm at the Downe Township Union Hall.

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Date

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NADINE E. LOCKLEY, RMC, CMR
Municipal Clerk